

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1351

By: Gann

AS INTRODUCED

An Act relating to public finance; creating the Defending the Integrity of the Appropriations Process and the Verbal Earmarks Transparency Act of 2025; amending 62 O.S. 2021, Section 34.42, as amended by Section 1, Chapter 113, O.S.L. 2024 (62 O.S. Supp. 2024, Section 34.42), which relates to budget work programs; requiring executive officer to certify agency compliance; requiring certain disclosure by executive officer; providing requirements of disclosure; defining term; providing for noncodification; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This section shall be known and may be cited as the "Defending the Integrity of the Appropriations Process and the Verbal Earmarks Transparency Act of 2025".

SECTION 2. AMENDATORY 62 O.S. 2021, Section 34.42, as amended by Section 1, Chapter 113, O.S.L. 2024 (62 O.S. Supp. 2024, Section 34.42), is amended to read as follows:

1 Section 34.42. A. On or before the first day of June in each
2 year, or as soon thereafter as possible, all agencies shall file
3 agency budgets with the Director of the Office of Management and
4 Enterprise Services. Copies of all agency budgets shall also be
5 made available electronically to the staff of the Joint Legislative
6 Committee on Budget and Program Oversight.

7 B. The required instructions, content and format of agency
8 budgets shall be developed by the staff of the Budget Division of
9 the Office of Management and Enterprise Services.

10 C. 1. The agency budget shall include a description of all
11 funds available to the agency for expenditure and set out allotments
12 requested by the agency by quarter and the entire fiscal year.

13 2. The agency budget shall be accompanied by an organizational
14 chart of the agency, a statement of agency mission and program
15 objectives.

16 3. The agency budget shall delineate agency spending by such
17 categories and with at least as much detail as is specified in the
18 legislative appropriation and as prescribed by the Director of the
19 Office of Management and Enterprise Services.

20 4. Agency budgets shall be signed by the executive officer of
21 each agency.

22 5. The executive officer shall certify that the agency is in
23 complete compliance with the requirements of Section ~~34.11.3 of this~~
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~~title and Section 3-114 of Title 65 of the Oklahoma Statutes~~ 3 of this act.

D. A "request officer" shall be designated by each state agency for the purpose of making program and allotment requests.

E. Executive officers of agencies shall cooperate with the Office of Management and Enterprise Services staff and Joint Committee staff in developing program budgeting categories.

F. All funds available or expected to be made available to any agency, including nonfiscal appropriations, shall not be available for expenditure until the request officer of the agency has complied with the applicable provisions of the Oklahoma State Finance Act and has received approval of such request for funds from the Director of the Office of Management and Enterprise Services.

G. The provisions of this section shall not apply to CompSource Oklahoma if CompSource Oklahoma is operating pursuant to a pilot program authorized by Sections 3316 and 3317 of Title 74 of the Oklahoma Statutes.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 34.42.2 of Title 62, unless there is created a duplication in numbering, reads as follows:

A. An agency executive officer shall disclose, within seventy-two (72) hours, his or her awareness of any communication that occurs between a member of the Legislature, or an employee of the same, and the executive officer or an agency employee, during which

1 the legislator or employee suggests the manner in which state funds
2 should be expended. Such disclosure shall be made with the State
3 Ethics Commission and shall be posted to the Commission's website.
4 The disclosure shall include, at a minimum, but not be limited to,
5 the approximate time and date of the communication, the nature of
6 the suggested expenditure, and the identity of the legislator or
7 employee proffering the suggestion.

8 B. For purposes of this section, "executive officer" means the
9 director of any office, officer, bureau, board, counsel, court,
10 commission, institution, unit, division, body or house of the
11 executive or judicial branches of the state government, whether
12 elected or appointed, excluding political subdivisions of the state,
13 the State Legislature, and the Office of the Governor.

14 SECTION 4. This act shall become effective November 1, 2025.
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